

|          |                                                                     |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                 |
|----------|---------------------------------------------------------------------|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
|          |                                                                     | <p><b>2. Demurrer to First Amended Complaint by Defendants BDO Seidman, LLP; BDO USA, P.C.; BDO Capital Advisors, LLC; and Trenwith Group, LLC (ROA 91)</b></p> <p>The Demurrer of Defendants BDO Seidman, LLP; BDO USA, P.C.; BDO Capital Advisors, LLC; and Trenwith Group, LLC is SUSTAINED.</p> <p>Plaintiff’s request for judicial notice of filings in the Orange County and Los Angeles Superior courts (ROA 102) is granted.</p> <p>Moving Defendant asserts the same statute of limitations argument raised by Defendant Andrew Boyd-Jones and addressed above. The demurrer is sustained without leave to amend for the same reasons.</p> <p><b>3. Demurrer to First Amended Complaint by Defendant Ron E. Ainsworth (ROA 79)</b></p> <p>The Demurrer of Defendant Ron E. Ainsworth is SUSTAINED.</p> <p>Plaintiff’s request for judicial notice of filings in the Orange County and Los Angeles Superior courts (ROA 102) is granted.</p> <p>Moving Defendant asserts the same statute of limitations argument raised by Defendant Andrew Boyd-Jones and addressed above. The demurrer is sustained without leave to amend for the same reasons.</p> |
| <b>7</b> | <p><b>LCS Capital, LLC vs. Sell</b></p> <p><b>2023-01345115</b></p> | <p><b>1. Motion to Enforce Settlement</b></p> <p>Plaintiff LCS Capital, LLC’s unopposed Motion to Enforce the Settlement is GRANTED. (Code Civ. Proc. § 664.6)</p> <p>“A court ruling on a motion under CCP § 664.6 must determine whether the parties entered into a valid and binding settlement. A settlement is enforceable under section 664.6 only if the parties agreed to all material settlement terms. The court ruling on a motion may consider the parties’ declarations and other evidence in deciding what terms the parties agreed to, and the court’s factual findings in this regard are reviewed under the substantial evidence standard. If the court determines</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                         |

that the parties entered into an enforceable settlement, it should grant the motion and enter a formal judgment pursuant to the terms of the settlement. The statute expressly provides for the court to ‘enter judgment pursuant to the terms of the settlement.’” (*Hines v. Lukes* (2008) 167 Cal.App.4th 1174, 1182 [internal citations omitted].)

Here, Plaintiff and Defendant entered into a written settlement of the above captioned action. As part of the settlement agreement, the parties agreed that this Court would have continued jurisdiction pursuant to CCP 664.6 and agreed to a stipulated judgment in the event of Defendant’s default. The Parties also executed and filed a Joint Stipulation For Judgment Pursuant to a Settlement Agreement (“Joint Stipulation”), and this Court retained jurisdiction to enforce the settlement in an Order entered June 5, 2024.

Pursuant to the terms of the Settlement Agreement, Defendant was required pay first appearance fees in the amount of \$435.00 and then make 269 consecutive monthly payments in the amount of \$100.00 beginning on March 15, 2024, and continuing the 15th day of each and every month through and including a final payment in the amount of \$62.60 on or before August 15, 2046. (Plaintiff’s Decl., ¶ 4.)

On May 15, 2024, Defendant’s check for first appearance fees was returned for insufficient funds. (Brown Decl., Exh. A & ¶7). Credits from Defendant’s account were applied to cure the default and cover Defendant’s appearance fees in the amount of \$435.00 (Brown Decl., ¶8).

On July 15, 2024, Defendant defaulted under the Settlement Agreement and Joint Stipulation by failing to make a payment per the terms of the Settlement Agreement. (Decl. Brown, ¶10); see also (Plaintiff’s Decl., ¶9).

On August 16, 2024, Plaintiff, through counsel, mailed a letter to advise Defendant of the default and provide a 10 day opportunity to cure. (Brown Decl., Exh. C & ¶11.) As of the date of this filing, Defendant has failed to cure the default and has also failed to make any future payments. (Plaintiff’s Decl. ¶8).

Based upon the foregoing, Plaintiff has established there was a valid and binding settlement agreement between the parties, the parties agreed to all material terms of the settlement, the

|   |                                                                       |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                  |
|---|-----------------------------------------------------------------------|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
|   |                                                                       | <p>settlement was made during the pendency of litigation, and the settlement is enforceable by motion made under Code Civ. Proc. § 664.6.</p> <p>Accordingly, the motion is GRANTED.</p> <p>Judgment in the amount of \$28,801.10 shall be entered against Defendant Nicole Sell as set forth in the Consent Judgment.</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                       |
| 8 | <p><b>Cao vs. General Motors, LLC</b></p> <p><b>2024-01409133</b></p> | <p><b>1. Motion to Compel Production</b></p> <p>Plaintiff Derick Cao moves to compel Defendant General Motors LLC (“GM”) to serve further substantive responses to Plaintiff’s Special Request For Production of Documents, Set One, (“RFP”) Nos. 9-10, 83; 12-16; 22-26, 40-52, 84-88, 90, 22-26, 40-52, 58-62, 63-67, 68-72, and 73-82 is CONTINUED to 05/20/2025 at 9:00 am..</p> <p>Code of Civil Procedure section 2031.310 provides in pertinent part, “(a) On receipt of a response to a demand for inspection, copying, testing, or sampling, the demanding party may move for an order compelling further response to the demand if the demanding party deems that any of the following apply: [¶] (1) A statement of compliance with the demand is incomplete. [¶] (2) A representation of inability to comply is inadequate, incomplete, or evasive. [¶] (3) An objection in the response is without merit or too general. [¶] (b) A motion under subdivision (a) shall comply with each of the following: [¶] (1) the motion shall set forth specific facts showing good cause justifying the discovery sought by the demand. [¶] (2) The motion shall be accompanied by a meet and confer declaration under Section 2016.040.”</p> <p>Section 2016.040 provides: “A meet and confer declaration in support of a motion shall state facts showing a reasonable and good faith attempt at an informal resolution of each issue presented by the motion.”</p> <p>The rule requiring a good faith effort to meet and confer about discovery disputes “is designed to encourage the parties to work out their differences informally so as to avoid the necessity for a formal order . . . [t]his, in turn, will lessen the burden on the court and reduce the unnecessary expenditure of resources by litigants through promotion of informal, extrajudicial resolution of discovery disputes.” (<i>Stewart v. Colonial Western Agency, Inc.</i> (2001) 87 Cal.App.4th 1006, 1016.)</p> |